ONE-OFF SHIURIM

Why Wasn't It All Written Down? The Oral Law

Derech Hashem, Maamar HaIkarim

Sefer: Maamar HaIkarim by Rabbi Moshe Hayim Luzzatto (the Ramhal), printed at the end of Derech Hashem **Section:** Maamar HaIkarim, essay 10: the Oral Law and the Talmud (first part) **Shiur:** Part of Dayan Daniel Kada's Derech Hashem series at Tiferet Eyal, Thursday 21 July 2022

These notes are based on an automatic transcript of the recording.

Recap: who split the sea?

Last time, on miracles, the group discussed miracles that God performs and miracles that people bring about. A participant who had listened to the recording asked: did Moshe split the sea, or did God? The Rabbi clarified. It was God's miracle. Moshe did not initiate it; he was the vehicle through which it came, to show Israel his standing. That is different from a saddik who himself instigates a miracle.

The Torah is not self-explanatory

The tenth essay, the longest, is on the Oral Law, a topic the main book never touched. The Ramhal writes that God did not write the Torah with a complete, self-sufficient explanation. On the contrary, He wrote many things that no one could understand correctly without the explanation transmitted alongside them, generation after generation, from Sinai.

His example is tefillin. "Bind them as a sign on your hand, and they shall be totafot between your eyes." Bind what? What is totafot? Or mezuzah: "write them on the doorposts of your house". What do you write, how, and where? The verse gives the command, but no details. God did this deliberately.

The Rabbi brought Rabbi Samson Raphael Hirsch, the great nineteenth-century German thinker who spent his life fighting Reform. He was careful to add that Reform is very different from the Sadducees, who accepted the written Torah alone. Rabbi Hirsch compared the written Torah to notes taken at a lecture. Someone who was not there cannot make sense of them, but the person who heard the lecture looks at his notes and understands. The written Torah is the terse notes, and the Oral Law is the lecture God gave Moshe. Together they make up the Torah.

Why not write everything clearly?

The Ramhal says only that God did it "for reasons known to Him". People often ask: why do we need the Talmud with all its debates? If everything were black and white, there would be no disputes, and Daf Yomi would be much shorter.

A participant suggested it was to encourage discussion. The Rabbi rejected this. The Gemara says disputes began only when students did not serve their teachers properly, in the days of Hillel and Shammai. Until then everything had been passed down clearly. So disagreement is not the purpose.

He offered two reasons of his own:

1. **The teacher and student relationship.** If everything were written, no one would need guidance or mentors. Much of Torah lives through the rabbis we look up to and learn from.
2. **The flexibility of Torah.** This, he said, he strongly believes. In law, alongside the literal rule, there is the "mischief rule": a judge looks behind the words to the purpose of the legislation and applies it to new circumstances. When everything is written explicitly there is no room for that. Vagueness leaves room for rabbinic interpretation. "There isn't a thing in the Torah which is difficult morally or ethically which the Sages haven't found a way around." He gave examples from inheritance (the subject of his Tuesday class on wills), Pesah and interest, where the Sages of each generation found creative mechanisms.

An eye for an eye

His main example was "an eye for an eye, a hand for a hand". Read without its interpretation, it means that if you blind someone you lose your own eye. The Gemara in Bava Kamma brings eight or nine proofs that it means money. The mainstream position is that it always meant money.

The Rabbi asked a participant honestly whether, reading the verse, it sounds like money. It does not. He described another approach as "completely acceptable": at the time the Torah was given it meant what it says, but the Sanhedrin has the authority to interpret the Torah for its generation, and they read it as money because that kind of retributive justice no longer made sense. The very fact that the Gemara needs so many proofs suggests this is not simple. He stressed that no one today has that authority, and that this is different from the creative mechanisms of later Sages, who found ways around a law rather than reinterpreting it.

Halacha LeMoshe MiSinai and the 13 principles

A participant asked how this relates to Halacha LeMoshe MiSinai. The Rabbi explained that this is a law transmitted with no hint at all in the verses, such as black tefillin. It is biblical, and there can be no dispute about it.

The 13 principles of interpretation, which we say every morning, are something else again: tools to interpret the Torah where we do not know the answer. Asked where they come from, the Rabbi noted the Gemara's rule that one may not create a gezerah shavah on one's own; it must be received from one's teacher, which points back to Moshe. Kal vahomer is simply logic. About some of the others he was not sure. But the bulk of the Oral Law, such as how tefillin are made, was not derived through the 13 principles. It was transmitted.

Three categories

The Ramhal divides the verses and their interpretation into three categories:

1. **A general concept written explicitly, with the details transmitted.** Tefillin is the classic example.
2. **Ambiguous verses whose correct reading was transmitted.** For example, "they shall sell the live ox and divide its money": must it literally be sold, or is half its value paid? The tradition explains it means paying from the damager's own property according to value.
3. **Verses whose tradition differs from the plain words.** There are very few of these, and even then, if you search, you find the words can be read that way within limits. "An eye for an eye" is an example, if you take the approach that it always meant money. Another is the verse on yibbum about "the firstborn", which the Gemara reads quite differently from its plain sense.

The next class would discuss why rabbinic laws matter and how they differ from biblical ones.

Summary

- The written Torah cannot be understood alone; God deliberately left its details to be transmitted orally.
- Rabbi Samson Raphael Hirsch: the written Torah is the lecture notes, the Oral Law is the lecture.
- Disputes are not the goal; they arose when transmission weakened.
- The Rabbi sees two benefits in an unwritten tradition: the bond between teacher and student, and the flexibility to apply Torah to new times.
- The Oral Law fills in details, resolves ambiguity, and occasionally reads a verse very differently from its plain sense.

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